

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 10
Honorable Jeffrey B. El-Hajj
Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 8, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, you must call (408) 808-6856 before 4:00 P.M.

You must also contact the other side before 4:00 P.M. to inform them that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

The courthouse is open: The court **strongly prefers in-person** appearances for all contested law-and-motion matters. For all other hearings, parties may appear either in person or by video. Telephone-only appearances are no longer permitted for civil hearings unless the court grants an exception. (Civil Local Rule 5.A.)

Scheduling motion hearings: Please visit <https://reservations.sccscourt.org> or call 408-882-2430 between 8:30 a.m. and 3:00 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. Motion papers must be filed no more than five court days after reserving the hearing date, or the date will be released to other cases.

Remote appearances: Department 10 uses Unicorn Digital Courtroom (UDC) for remote hearings. **This system requires advance registration with a case number and hearing date.** Please visit this link if you need to appear remotely, and then scroll to the link for Department 10:
<https://santaclara.courts.ca.gov/online-services/remote-hearings>.

Recording is prohibited: Most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

Court reporters: Unfortunately, the court is not able to provide official court reporters for civil proceedings. If any party wishes to pay for their own court reporter, the appropriate form must be submitted: <https://santaclara.courts.ca.gov/general-information/court-reporter-information>.

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9:00 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	24CV434168	Toll Bros, Inc. v. Lefco Inc., a California Corporation	Application for the sale of a dwelling. (Code Civ. Proc., § 704.750.) By stipulation of the parties, the application is CONTINUED to February 23, 2027, at 9:00 a.m. in Department 10. The stipulation and order filed September 3, 2026, will be the order of the court.
Line 2	25CV477176	Maniam Enterprises, LLC v. Isaac Barrera et al.	Click LINE 2 or scroll down for ruling.
Line 3	26CV486559	Eric Wiedemann v. Juggernaut Consulting, LLC et al.	Click LINE 3 or scroll down for ruling.
Line 4	26CV489001	Sophie Shen v. Fasikl, Ltd. et al.	Click LINE 4 or scroll down for ruling.
Line 5	25CV467743	Ana Pace v. Crest Enterprises, LLC, a California Limited Liability Company et al.	Click LINE 5 or scroll down for ruling.

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Line 6	25CV467743	Ana Pace v. Crest Enterprises, LLC, a California Limited Liability Company et al.	Click LINE 5 or scroll down for ruling.
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Calendar Line 2**Case Name:** Maniam Enterprises LLC v. Isaac Barrera et al.**Case No.:** 25CV477176

Receiver's petition for instructions regarding receivership. The receiver was appointed following a hearing in January 2026 to control Salt and Lime LLC and the restaurant Distrito Federal. The underlying case involves a complaint by plaintiff Maniam Enterprises LLC defendant Isaac Barrera, alleging causes of action for breach of fiduciary duty and breach of operating agreement. The allegations relate to Barrera's management of the restaurant. Default judgment was entered against Barrera for a total of \$523,488.02 in August 2026 after a default prove-up hearing.

In the instant petition for instructions, the receiver reports that the receivership estate is insolvent and that the subject restaurant was shuttered due to lack of funds. The receiver presents two options for the court: (1) instruct the receiver to accept a current bona fide sale offer for the business, conditioned on the court ordering the parties to the case to fund the receivership estate with \$75,000 for broker commissions, tax obligations, receivership fees, or other closing costs; or (2) instruct the receiver to wind down the receivership and return the corporation and restaurant to the parties (along with any pending or potential purchase offers).

Plaintiff's reply contends that the receiver is in a better position to negotiate the sale of the restaurant. But plaintiff does not want to fund the receivership estate with \$75,000. Plaintiff's counsel declares, apparently based on discussions with counsel for the receiver, that the necessary amount is now approximately \$39,910 because expenses have reduced due to the restaurant closing. Plaintiff proposes that the court order the receiver to issue certificates of indebtedness to raise the necessary money. Plaintiff alternatively contends any costs should be levied against Barrera. Those positions are untenable. The receiver is currently operating without funding. Neither of plaintiff's proposals are likely to provide funding on an adequately swift timeline. If plaintiff wishes to continue benefiting from the receiver's services, plaintiff will need to fund the receivership estate.

The court adopts the receiver's option one, with modification as to the amount of funding. Plaintiff is ordered to fund the receivership estate with \$40,000 no later than September 16, 2026. If that funding occurs, the receiver may pursue the purchase offer received by the receiver's broker in August 2026 (and any other bona fide offers), or otherwise liquidate the business assets of the receivership estate. If that funding does not occur, the receiver may turn over to the parties any pending or potential purchase offers; return the business and all assets to the parties; and wind down the receivership.

The court will prepare the order.

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Calendar Line 3

Case Name: Eric Wiedemann v. Juggernaut Consulting, LLC et al.

Case No.: 26CV486559

Plaintiff Eric Wiedemann's application for writ of possession. Notice is not proper. There is no proof of service attached to the February 19, 2026, application. The application is opposed by Juggernaut Consulting, LLC (Juggernaut); April Mora; and Gavin Mora.

Procedural Background

Plaintiff filed the original and still operative complaint in February 2026. It is not verified. It alleges defendants breached a business purchase agreement, under which plaintiff sold defendants the Red Light Day Spa.

The day after filing the complaint, plaintiff filed a notice of application for writ of possession. Page three of that filing is Judicial Council Form CD-100, an application for writ of possession. Boxes are checked indicating that the basis for the claim and right to possession are the "verified complaint"; "a written document, a copy of which is attached"; and "the attached declaration." The application states the claimed property is: "Personal property as collateral as identified in Schedule A, including equipment, fixtures, inventory, devices, and related personal property located at 16579 Los Gatos Almaden Rd, Los Gatos, CA 95032." No documents are attached to the application. The application is not accompanied by a proof of service. There is a proof of electronic service filed on February 25, 2026, indicating plaintiff served a document called, "Combined Notice – Writ Filing and Ex Parte Undertaking Waiver Request." No document in this case has that name.

Plaintiff filed an ex parte application for a temporary restraining order and preliminary injunction in March 2026. The court denied that application by written order, stating: "Plaintiff Eric Wiedemann's ex parte application for a temporary restraining order and order to show cause re preliminary injunction is denied without prejudice to the filing of a noticed motion for preliminary injunction under Code of Civil Procedure section 1005." (3/3/26 order.) Plaintiff never filed a noticed motion.

Factual Background

None of what follows was included in the application under consideration here. The court has reviewed the record to find this information, for the sake of completeness. It is undisputed that plaintiff (on behalf of Red Light Day Spa, LLC) and defendant April Mora (on behalf of Juggernaut) signed a business purchase agreement in March 2025. Plaintiff agreed to sell Juggernaut the Red Light Day Spa. The total purchase price was \$140,000, payable in installments. Plaintiff was also entitled to revenue sharing. The transaction closed, by the agreement's terms, 30 days "from signing." Plaintiff agreed to indemnify Juggernaut against unpaid debts incurred prior to the closing date.

A statement of information was filed with the Secretary of State in March 2025 for Red Light Day Spa, LLC. It lists April Mora as the chief executive officer and the only manager or member of Red Light Day Spa, LLC. (Exh. 3 to 7/14/26 Mora dec.) A UCC 1 Financing Statement was filed with the Secretary of State in April 2025, listing as debtors Juggernaut;

April Mora; and Red Light Day Spa. The secured party's name is Red Light Day Spa, LLC. Plaintiff is not mentioned on the filing.

Plaintiff's complaint alleges defendants failed to make required payments under the agreement. Defendants' cross-complaints allege plaintiff defrauded them by, among other things, failing to disclose business debt incurred before the sale. (Juggernaut cross-complaint, p. 5:5-17.)

Legal Standard

An application for a prejudgment writ of possession for personal property may be filed by a plaintiff to a civil action. "The application shall be executed under oath and shall include all of the following: (1) A showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff's claim is a written instrument, a copy of the instrument shall be attached.; (2) A showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.; (3) A particular description of the property and a statement of its value.; (4) A statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there.; (5) A statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure." (Code Civ. Proc., § 512.010; unspecified statutory references are to this Code.) A court will issue a writ of possession if it finds both that (1) plaintiff has established the probable validity of plaintiff's claim to possession of the property; and (2) the undertaking requirements of section 515.010 are satisfied. "A claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (§ 511.090.)

Self-represented litigants are entitled to the same, but no greater, consideration than other litigants and attorneys. (*County of Orange v. Smith* (2005) 132 Cal.App.4th 1434, 1444.)

Analysis

Plaintiff's application is procedurally deficient. It is not accompanied by a proof of service. Even if the proof of electronic service filed on February 25, 2026, could be construed as having served the application, that service would be ineffectual because defendants had not appeared in the action. (§ 512.030, subd. (b) ["If the defendant has not appeared in the action, and a writ, notice, order, or other paper is required to be personally served on the defendant under this title, service shall be made in the same manner as a summons is served under Chapter 4 (commencing with Section 413.10) of Title 5."].) The application is also not supported by any evidence; no documents are attached to it and the complaint is unverified. The reference to "collateral as identified in Schedule A" does not adequately describe the property. The court cannot locate a document titled "Schedule A" in the record. Plaintiff's declaration in support of his reply asserts it was submitted "with the writ papers." Assuming he means the March 2026 ex parte application for temporary restraining order and preliminary injunction, those documents were filed after the application at issue here. The exhibits to that

ex parte application were also not properly authenticated. The application must be denied for these reasons.

Even if the court overlooked those deficiencies, the application would still be denied. Plaintiff has not satisfied his burden to show the probable validity of his claim to possession of any property associated with the business. Almost every fact in this case has been hotly contested. Among other things, Juggernaut's cross-complaint alleges that plaintiff misrepresented the brand name of the business equipment that was sold with the business. (Juggernaut cross-complaint, ¶ 11-12.) The court does not accept that allegation as true, but it does create uncertainty as to the accuracy of the unauthenticated "Itemized Resale Schedule" that plaintiff appears to assert is the Schedule A referenced in the application. There are simply too many disputed facts for the court to make a finding of probable validity.

Conclusion

The application for writ of possession is denied.

The court will prepare the order.

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Calendar Line 4

Case Name: Sophie Shen v. Fasikl Ltd. et al.

Case No.: 26CV489001

Plaintiff Sophie Shen's motion for preliminary injunction against Fasikl Ltd. and Fasikl Inc. (collectively, Fasikl). Notice is proper and the motion is unopposed.

Plaintiff filed this Uniform Voidable Transactions Act action against Weiping Xia (plaintiff's brother) and entities including the Fasikl entities. The complaint alleges Weiping Xia made a series of fraudulent transfers to evade a judgment against him in an earlier action between the siblings. In the prior action, plaintiff sued her brother Weiping Xia for breach of fiduciary duty and other causes of action based on his refusal to pay her for her share of a company she invested in that he later sold. (Santa Clara County Superior Court case No. 19CV360975.) A jury awarded plaintiff \$21 million against Weiping Xia in 2022. (Exh. 2 to 7/24/26 Shen dec.) The court takes judicial notice of that court filing. (Evid. Code, § 452, subd. (d).) The complaint in this action prays for a constructive trust over any fraudulently transferred assets. Plaintiff also has a motion pending to amend the complaint to add a cause of action seeking a declaration that defendant Xstone Management Limited acquired Fasikl shares with assets derived from the company Weiping Xia sold.

The instant motion seeks a preliminary injunction that would enjoin Fasikl from transferring, redeeming, encumbering, or otherwise disposing of the shares of Fasikl Ltd. owned by defendant Xstone Management Limited. It is supported by a lengthy declaration by plaintiff that details the efforts plaintiff has made to trace Weiping Xia's assets. The declaration has hundreds of pages of financial records attached. As relevant to this motion, plaintiff declares that \$700,000 traceable to Weiping Xia's assets was transferred to defendant Xstone Management Limited in 2025. (7/24/26 Shen dec., ¶¶ 34-38.) Xstone then transferred \$700,000 to purchase "905,732 Series A+ Preferred Shares" in Fasikl. (*Id.* ¶¶ 38-39.) Those shares are currently frozen by agreement of the parties, which is set to expire on September 26, 2026. (*Id.* ¶ 41-42.) Plaintiff did not address a bond requirement in her moving papers.

"In deciding whether to issue a preliminary injunction, a court must weigh two 'interrelated' factors: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction." (*Butt v. State of California* (1992) 4 Cal.4th 668, 677-678.) "The trial court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction." (*Ibid.*)

Under the Uniform Voidable Transactions Act, " 'a transfer of assets made by a debtor is fraudulent as to a creditor, whether the creditor's claim arose before or after the transfer, if the debtor made the transfer (1) with an actual intent to hinder, delay or defraud any creditor, or (2) without receiving reasonably equivalent value in return, and either (a) was engaged in or about to engage in a business or transaction for which the debtor's assets were unreasonably small, or (b) intended to, or reasonably believed, or reasonably should have believed, that he or she would incur debts beyond his or her ability to pay as they became due.' " (*Hasso v. Hapke* (2014) 227 Cal.App.4th 107, 121-122.)

Plaintiff's declaration and supporting evidence are adequate to show a likelihood of prevailing on UVTa cause of action as to defendant Weiping Xia. The shares at issue are the result of those transfers. The evidence also supports a likelihood of prevailing on the declaratory relief cause of action, though the court notes that cause of action is not in the presently operative complaint. The financial maneuvering detailed in plaintiff's declaration also supports a finding of irreparable harm if injunctive relief is not granted. Fasikl did not oppose, and the court does not find any irreparable harm in an order enjoining transfer of the stock at issue.

The court GRANTS plaintiff's motion for preliminary injunction as follows: Fasikl Ltd. and Fasikl Inc. (and any of their agents) are enjoined from transferring, redeeming, encumbering, or otherwise disposing of the 905,732 Series A+ Preferred Shares of Fasikl Ltd. owned by defendant Xstone Management Limited. The preliminary injunction will remain in effect until entry of judgment or further order of this court. Plaintiff shall post a bond of \$50,000 no later than October 8, 2026. (Code Civ. Proc., § 529.)

The court will prepare the order.

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Calendar Line 5

Case Name: Ana Pace v. Crest Enterprises, LLC et al.

Case No.: 25CV467743

Defendant Crest Enterprises, LLC's motion for order that plaintiff Ana Pace temporarily relocate to allow for mold remediation. (Civ. Code, §§ 1954, 1941.7.) Defendant initially moved ex parte for a preliminary injunction without requesting a temporary restraining order. The court set the matter for a hearing.

Background

This lawsuit involves a complaint against defendant for, among other things, the breach of implied warranty of habitability. Plaintiff is defendant's tenant at the subject residence. The complaint alleges a "black mold infestation" at the subject residence. (Complaint, ¶ 15.)

Defendant's motion is supported by several documents. Counsel for defendant declares that plaintiff was first informed of the need to temporarily relocate in February 2026. (8/26/26 Simmons dec., ¶¶ 9-13.) Plaintiff has apparently consistently refused to relocate, except on conditions to which defendant will not agree. Attached to counsel's declaration is an April 2025 letter from an environmental consultant plaintiff hired to inspect the subject residence. The environmental consultant recommended mold remediation. The letter notes, "During the mold remediation process, you and your family may need to be temporarily relocated, which may be at the expense of the landlord." (Exh. 1 to 8/26/26 Simmons dec.)

There is a declaration from Michael Yelavich, a general contractor who declares he has been licensed for more than 40 years. (8/26/26 Yelavich dec., ¶ 1.) Yelavich declares that he inspected the subject residence on August 17, 2026, with representatives from a retained mold remediation company. (*Id.*, ¶ 5.) The inspection revealed that "water damage to the flooring had spread and now requires replacement of all first-floor flooring, the underlying insulation, and likely portions of the subflooring." (*Id.*, ¶ 6.) Thirty to 40 square feet of drywall will also need to be removed. (*Ibid.*) The mold remediation company will then need to perform mold remediation throughout the affected areas. (*Id.*, ¶ 8.) He opines that the subject property will be dangerous for non-construction personnel until the work is complete. (*Id.*, ¶ 7.) The work will take "at least 30 days to complete." (*Id.*, ¶ 11.)

A declaration from defendant's co-manager attaches a notice of violation by the Department of Housing and Community Development, dated August 3, 2026. (Exh. E to 8/26/26 Der Torossian dec.) The notice found "visible water damage to the sheetrock, baseboard, and flooring inside the dining room/kitchen area of the residence." The notice states, "homeowner must provide documentation from a licensed mold remediation specialist confirming that the area of the residence affected by the mold has been remediated within five days of receiving this Notice." (*Id.*, p. 2.)

Defendant served plaintiff with a 60-day notice of termination of tenancy, notice of entry, and notice of temporary relocation for necessary repairs on August 14, 2026. (9/2/26 Simmons dec., ¶ 2.)

Legal Standards

Although a preliminary injunction may not be the precisely appropriate framework to seek an order that will be temporary, the legal standard for that relief is nonetheless useful in guiding the court's discretion. "In deciding whether to issue a preliminary injunction, a court must weigh two 'interrelated' factors: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction." (*Butt v. State of California* (1992) 4 Cal.4th 668, 677-678.) "The trial court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction." (*Ibid.*) The granting of mandatory injunctive relief is not permitted except in extreme cases where the right thereto is clearly established. (*City of Corona v. AMG Outdoor Advertising, Inc.* (2016) 244 Cal.App.4th 291, 299.)

Civil Code section 1941.7 provides that a "landlord may enter a dwelling unit to repair a dilapidation relating to the presence of mold..., provided the landlord complies with the provisions of Section 1954." Civil Code section 1954 describes the notice that is generally required before a landlord enters a unit to make repairs; the standard is reasonable notice. Civil Code section 1954, subdivision (b) states, "Except in cases of emergency or when the tenant has abandoned or surrendered the premises, entry may not be made during other than normal business hours unless the tenant consents to an entry during other than normal business hours at the time of entry." And Civil Code section 1954, subdivision (c) states, "The landlord may not abuse the right of access or use it to harass the tenant." A landlord's repair obligations are not triggered if a tenant "interferes substantially with the landlord's obligation under Section 1941 to effect the necessary repairs." (Civ. Code, § 1941.2.)

Though not directly applicable here, Government Code section 7260, subdivision (i) defines "Comparable replacement dwelling" as being, among other things: "Decent, safe, and sanitary"; "Adequate in size to accommodate the occupants"; "Comparable with respect to the number of rooms, habitable space, and type and quality of construction"; "In an area not subject to unreasonable adverse environmental conditions"; and "In a location generally not less desirable than the location of the displaced person's dwelling with respect to public utilities, facilities, services, and the displaced person's place of employment."

Discussion

There is a threshold issue that may streamline the decision. Defendant has served defendant with a 60-day notice to end her tenancy. If plaintiff is willing to confirm on the record that she will comply with that 60-day notice and vacate the subject residence, then the balance of hardships is such that the court will not grant the motion. Some minimal work by the landlord merely to temporarily cover any areas of mold during normal business hours would be acceptable in this scenario.

If plaintiff is unwilling to confirm on the record that she will comply with the 60-day notice, then the court will grant the motion with conditions. Plaintiff's case is about mold contamination. Plaintiff's own consultant indicated relocation may be necessary. Defendant's general contractor declares that it would not be safe for plaintiff to remain while remediation occurs. Defendant has already been issued a notice of violation that requires it to remediate the mold. And plaintiff has refused to temporarily leave the subject residence. This is an extreme case where temporary mandatory injunctive relief is appropriate.

The court tentatively imposes the following conditions, which will be subject to discussion at the hearing: Plaintiff must vacate the subject residence no later than September 15, 2026. The duration of the relocation is 30 days; defendant must immediately inform plaintiff if the repairs are completed before the 30 days are complete. Defendant must limit the scope of remediation work to water-damage repair and mold remediation. Access by defendant and its contractors is limited to areas needing repair. Defendant must use a licensed mold-remediation contractor for the work, and must disclose the name of the contractor to plaintiff. Plaintiff may contact defendant if she needs to retrieve personal items; defendant is allowed to be present when plaintiff retrieves personal items (but defendant must remain in the parts of the subject residence where work is being performed). Plaintiff may not access the subject residence without defendant present. Defendant must provide comparable replacement housing to plaintiff for the duration of the relocation; the maximum budget for that replacement housing is one month of plaintiff's rent plus \$1,000 (to adjust for inflation). Defendant may satisfy that obligation by giving plaintiff a check in the amount of one month of plaintiff's rent plus \$1,000. Plaintiff may have one mold remediation expert on site during repairs. That expert may observe work from a safe distance, which may include taking photographs of work. The expert may not interfere with the mold remediation work or discuss the work with defendant or those hired by defendant.

The court will prepare the order.

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